



Questionnaire: Paramount Skydance - Warner Bros. Discovery

MN-45006

Deadline to respond: 7 May 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Paramount Skydance Corporation (**Paramount**)'s proposed acquisition of 100% of outstanding shares in Warner Bros. Discovery, Inc. (**WBD**) (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **7 May 2026** via email to mergers@acc.gov.au with the title *Submission re: Paramount Skydance - Warner Bros. Discovery*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au with the title *Request for call re: Paramount Skydance - Warner Bros. Discovery*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

1. Provide a brief description of your organisation, including any commercial relationships with Paramount and/or WBD.

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Questions for cinemas

2. Provide a brief description of the theatrical content you exhibit and which suppliers you source this content from, for example global studios (e.g. Paramount and WBD), international production groups and local producers.

3. Provide an estimate of the proportion of your films exhibited over the last three calendar years that were produced by each of Paramount and WBD. Explain how important you consider Paramount and WBD content is for your ability to compete, including whether there are any characteristics of either Paramount or WBD that make them a more important supplier of theatrical content, for example, higher quality or quantity of films, better commercial terms, or different distribution arrangements.

4. Explain the extent to which you are able to switch theatrical content suppliers (completely or partially), and which theatrical content suppliers are alternatives to Paramount and WBD.

Questions for suppliers of free to air television, video on demand, or other linear entertainment services

5. To what extent do you compete with Paramount (including Paramount-owned services, Paramount+ and Network 10) and/or WBD (including HBO Max and WBD's pay TV services)?

6. Explain who you consider to be your main competitors. Provide details as to whether this differs depending on the format audio-visual content is provided to consumers in (e.g. free to Air TV, subscription video on demand or other on demand or linear entertainment services), or the type or genre of audio-visual content. If possible, provide estimated viewership, subscriber numbers or any other relevant measure of market share.

7. Provide a brief description of the audio-visual content you have acquired from Paramount or WBD, including:
- a. the channels through which this audio-visual content is exhibited or displayed (e.g. free to air, SVOD, or other on-demand or linear formats); and
 - b. the estimated proportion of content available on your platform or service that is licensed from or produced by Paramount or WBD (in terms of number of individual titles, hours of broadcast or other relevant measure).

8. Explain whether the content you acquire or have acquired from Paramount or WBD has effective substitutes from alternative suppliers (including content produced in-house).
- a. If so, please state who these alternative suppliers are.
 - b. If you consider there are no effective substitutes from alternative suppliers, what would be the likely effect of loss of access to Paramount or WBD content on your viewership or subscriber numbers and associated revenue?

9. Explain whether your business produces content (in addition to that acquired from third parties such as Paramount and WBD) and describe any barriers you face to increasing in-house content production.

Questions for producers of theatrical and/or audio-visual content

10. Explain the extent you consider you compete against Paramount and/or WBD in the supply of:

- a. theatrical content for display in cinemas; and
- b. audio-visual content for display on free to air television, video on demand, or other linear entertainment services.

If possible, provide market shares on the basis of revenue generated or other relevant measure.

11. Explain who you consider to be Paramount's and WBD's main competitors in the supply of:

- a. theatrical content for display in cinemas; and
- b. audio-visual content for display on free to air television, video on demand, or other linear entertainment services.

Questions for all parties

12. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition, including any concerns on the impact of the Acquisition on competition in Australia.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).